CHAPTER 41 Union Territories

Under Article 1 of the Constitution, the territory of India comprises three categories of territories: (a) territories of the states; (b) union territories; and (c) territories that may be acquired by the Government of India at any time. At present, there are twenty-eight states, eight union territories and no acquired territories.

The states are the members of the federal system in India and share a distribution of power with the Centre. The union territories, on the other hand, are those areas which are under the direct control and administration of the Central government. Hence, they are also known as 'centrally administered territories'. 'In this way, existence of these territories constitutes a conspicuous departure from federalism in India; the Government of India is plainly unitary in so far as the relationship between New Delhi and these Central enclaves is concerned'[1].

Creation of Union Territories

During the British Rule, certain areas were constituted as 'scheduled districts' in 1874. Later, they came to be known as 'chief commissioners provinces'. After independence, they were placed in the category of Part 'C' States and Part 'D' Territories[2]. In 1956, they were constituted as the 'union territories' by the 7th Constitutional Amendment Act (1956) and the States Reorganisation Act (1956). Gradually, some of these union territories have been elevated to statehood. Thus, Himachal Pradesh, Manipur, Tripura, Mizoram, Arunachal Pradesh and Goa, which are states today were formerly union territories. On the other hand, the territories that were acquired from the Portuguese (Goa, Daman and Diu, and Dadra and Nagar Haveli) and the French (Puducherry) were constituted as the union territories.

At present, there are eight Union Territories. They are (along with the year of creation): (1) Andaman and Nicobar Islands—1956, (2) Delhi—1956, (3) Lakshadweep—1956, (4) Puducherry—1962, (5) Chandigarh—1966, (6) Jammu and Kashmir—2019, (7) Ladakh—2019 and (8) Dadra and Nagar Haveli and Daman and Diu—2020. Till 1973, Lakshadweep was known by the name of Laccadive, Minicoy and Amindivi Islands. In 1992, Delhi was redesignated as the National Capital Territory of Delhi. Till 2006, Puducherry was known as Pondicherry.

The union territories have been created for a variety of reasons. These are mentioned below[3]:

1. Political and administrative consideration—Delhi and Chandigarh.
2. Cultural distinctiveness—Puducherry and Dadra and Nagar Haveli and Daman and Diu.
3. Strategic importance—Andaman and Nicobar Islands and Lakshadweep.
4. Special treatment and care of the backward and tribal people—Mizoram, Manipur, Tripura and Arunachal Pradesh which later became states.

In 2019, the erstwhile state of Jammu and Kashmir was bifurcated into two separate union territories, namely, the Union territory of Jammu and Kashmir, and the Union territory of Ladakh. While introducing the Jammu and Kashmir Reorganisation Bill, 2019, in the Parliament, the central government gave the following reasons for the creation of these two new union territories: